

Islam v. State of U.P. & 4 Others

Allahabad High Court · Division Bench · 24 June 2013 · WRIT - C No. 33773 of 2013 · **Writ petition allowed (theft assessment quashed)**

HEADNOTE

A farmer's ancillary use of a sanctioned agricultural tube-well connection to run a 'kolhu' (crusher) or 'kutti machine' for crushing his own produce, within the sanctioned load, is authorised agricultural use and not 'unauthorised use' of electricity — as clarified by the licensee's own policy (the PVVNL Managing Director's order dated 11.11.2005) — unless he uses a load higher than sanctioned or installs a second meter. In a theft/unauthorised-use assessment the burden lies on the department to prove commercial use; absent any allegation of crushing for others or for hire, and any excess load or second meter, the FIR and the assessment are illegal.

HOLDING-UNITS

INTERPLAY · EA2003::126

Agricultural ancillary use (kolhu) within sanctioned load is not unauthorised use

QUESTION

Is a farmer's use of his agricultural tube-well connection to run a kolhu for crushing his own sugarcane, within the sanctioned load, 'unauthorised use' assessable as theft?

HOLDING

No. Ancillary use of a sanctioned agricultural connection for a kolhu/kutti machine to crush one's own produce, within the sanctioned load, is authorised agricultural use (per the licensee's own policy order of 11.11.2005), not unauthorised use — unless the load exceeds the sanctioned load or a second meter is installed. The burden to prove commercial use/theft is on the department; absent any allegation of crushing for others/hire, excess load, or a second meter, the assessment is illegal and quashed. ¶ [the merits discussion \(unnumbered order\)](#)

LIMITING FACTS

A farmer with a 7.5 HP tube-well connection was found running a kolhu to crush sugarcane; no allegation that it was for others or for hire, no excess load, no second meter; the department cited no Supply Code provision authorising the action.

PRINCIPLE TAGS

burden-on-licensee-to-prove-unauthorised-use In a theft/unauthorised-use assessment the burden is on the department to prove commercial or unauthorised use; a farmer need not disprove it where his use is ancillary agricultural use within the sanctioned load. ¶ [unnumbered order](#)